

The Forgotten Half of the Patent Clause

A constitutional argument in two volumes — and four addresses where you can read it

THE FORGOTTEN HALF OF THE PATENT CLAUSE

*What the Constitution said.
What the Supreme Court confirmed.
What post-1970 regulations did anyway.*

"The Original US Constitution — Article I, Section 8, Clause 8"
*To promote the Progress of Science and useful Arts, by
securing for limited Times to Authors and Inventors the
exclusive Right to their respective Writings and Discoveries.*

*"Any attempted reservation or continuation ... after the patent expires ...
runs counter to the policy and purpose of the patent laws."
— Scott Paper Co. v. Marcalus Mfg. Co., 326 U.S. 249 (1945)*

*"When the patent expires ... the right to make or use the article ... passes
to the public." — Kimble v. Marvel Entm't, LLC, 576 U.S. 446 (2015)*

YET 58% OF THE PUBLIC DOMAIN IS BLOCKED

BLOCKED — 58%
(Cars, Trucks, Tractors,
HVAC, Appliances, Lighting)

FLOWING — 27%
(Electronics, Tools,
Bicycles, Calculators)

HINDERED — 15%
(Pharmaceuticals &
Medical Devices)

A \$22 trillion household cost since 1970. \$3,385 per household, every year.

The Constitution and the Court say we can reclaim it.

The infographic features a circular diagram divided into three segments. The top segment, labeled 'BLOCKED — 58%', contains illustrations of a car, a tractor, a washing machine, a light bulb, and a house. The bottom-left segment, labeled 'FLOWING — 27%', contains illustrations of a bicycle, a calculator, a wrench, a radio, and a camera. The bottom-right segment, labeled 'HINDERED — 15%', contains illustrations of a pill bottle, a syringe, and a stethoscope. A large padlock is in the center of the circle, and a chain is draped across the top and left sides of the circle.

This reaches you through an acquaintance of the author, Roleigh Martin. The work argues that a promise written into Article I has been quietly nullified since 1970, and that a single federal courtroom can restore it. No federal court has ever ruled on the question — it is one of first impression.

THE CLAIM, IN ONE BREATH

Article I, Section 8, Clause 8 grants inventors an exclusive right for “limited Times.” When a patent expires, the right to make, copy, and improve the invention passes to the public. The brand name and logo stay with the original maker; only the expired engineering design passes. Post-1970 federal energy and safety standards make it unlawful to build a faithful remake of a regulated patent-expired design, so the monopoly ends but the exclusion does not. That blockage covers an estimated 58 percent of expired-patent commerce. The remedy is not deregulation. It is a time-shift: a certified remake

answers to the standards of its original platform year, while modern standards remain untouched for new designs. The argument rests on two constitutional prongs — the Patent Clause and the Takings Clause.

START HERE — AND PLEASE KEEP THIS ONE ADDRESS TO YOURSELF

marti124.github.io/Patent_LawyerSummary

Twenty-four chapter summaries across three pages. Each is a complete account of a single chapter, can be read on its own, and is marked with its own reading time — the shortest under two minutes, the longest eight and a quarter. Each carries a note on why that chapter matters to a lawyer. All twenty-four run about a hundred minutes; nobody is asking for a hundred. Read it on a laptop rather than a phone — the diagrams and maps are worth seeing at full size.

This address is unlisted. Please use it, and hand it to a colleague if you think it belongs with them — but do not post it publicly, link to it, or put it on social media. The three addresses below carry no such restriction and may be shared and publicized freely.

THREE COMPLETE CHAPTERS, THE BRIEF, AND THE EXAMINATION — PUBLIC

marti124.github.io/Patent_Exam

Three chapters reproduced in full: Chapter 1, *Four Problems, One Remedy*, the argument in plain language; Chapter 9 of Volume 2, *When Outsiders Advance Constitutional Law and Other Disciplines*, on twenty documented cases where someone outside a field saw what everyone inside it had missed; and the full open-book examination chapter. Alongside them: the Two-Volume Brief, a miniature preface on the author, an Invitation to Review, and the examination files — primary sources, prompts, and scoring sheet — so you can put the reasoning to an AI model and judge it yourself, as eleven engines did, including the legal research system OpenCase.

THE FULL APPARATUS — PUBLIC

marti124.github.io/Patent_EndNotes

The endnotes, glossary, and key-terms apparatus — roughly 190 pages, every citation with a live link. It includes Appendix A, the SCOTUS Case Master Table: every Supreme Court case cited across the two volumes, sorted by decision year, each described for what it actually holds. Inclusion is not endorsement — the cases that cut against the argument are in there too.

THE CITIZEN CAMPAIGN — PUBLIC

marti124.github.io/Patent_Letters

Letter and packet generators built for the Make American Living Affordable campaign, each aimed at a group with a concrete stake in the question: county sheriffs, governors and state attorneys general, owner-operator trucking associations, farm associations, health and lighting advocacy organizations, tribal nation leadership, and public-domain scholars and litigators. Each produces a customized letter; several produce a full mailing packet.

IF YOU WOULD RATHER HOLD THE BOOK

A printed review copy of both volumes can be sent to you; it is produced print-on-demand, so allow two to three weeks. Email a mailing address, phone number, and email address, along with a line about your position and how you might be able to help the work find a publisher. PDF and EPUB copies are available immediately on the same request, if you would rather not wait.

WHAT IS BEING ASKED

As this work moves toward publishers, the recurring question is whether a non-lawyer can be trusted with a constitutional argument. A few words from a practicing attorney or law professor would answer that better than anything the author could say. If, after reading enough to form a view, you find the work well-researched and deserving of serious consideration and a public hearing, a brief paragraph saying so — two or three sentences, in your own words — would be a considerable help.

That is the whole request: a statement of seriousness, not agreement with the conclusions. And if you are not an attorney yourself but know one for whom this argument is suited, passing it along is just as useful.

REACH THE AUTHOR

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To talk it over by phone, text first at 952-905-0822. Eastern time. Email is also the place to send a paragraph. The page that follows shows the proposed remedy in a single diagram.

The Desired SCOTUS Ruling Time-Shifts Regulations for Remanufacturing; the Commons Opens

THE PRINCIPLE

The regulatory standards for the original invention should be the same for a patent-expired remake — equal justice (standing) under the Patent Clause. A remake can happen if it need only meet the original standards.

THE PROBLEM TODAY

Current standards have ratcheted up and make it impossible to remanufacture the expired-patent item. The remedy time-shifts the rule back to the original's standard — the public's remake need meet only what the original met.

THE REGULATORY STANDARD

A grandfather exemption, earned by independent engineering certification, time-shifts the remanufactured design to the standards in force when its original was certified.

THE PATENT TERM

the exclusive right, granted for a limited Time

the patent still ends on schedule — it was never what blocked the public

THE MANUFACTURER'S PROTECTION

from low-cost remanufactured competition

THE CERTIFICATION GATE

A remanufactured patent-expired design passes the gate only if it contains nothing still under patent and meets the federal safety and emissions standards of its certified platform year — confirmed by independent engineering certification.

this protection ends.

Low-cost remanufactured competition is lawful again.

THE EXPIRED-PATENT COMMONS

Now open — the public may make, copy, improve, and remanufacture.

Held to the standards the original met — only the brand name and logo stay with the original maker.

the patent-expired invention

patent filing

Patent expires — the “limited Time” ends

time →

Simplified: the patent is shown expiring in the present, with remanufacturing desired now. The standard's applicability is time-shifted to the original's certified year — the wall stands, but for the remake it speaks the standards of that year.